

FHS Ethics: Equality

Readings

Required readings:

- Kymlicka, Will. 2001. *Contemporary Political Philosophy: An Introduction*. 2nd ed. Oxford: Oxford University Press, chapter 3 ('Liberal Equality').
- Frankfurt, Harry G. 1987. "Equality as a Moral Ideal." *Ethics* 98:21-43.
- Parfit, Derek. 1997. "Equality and Priority." *Ratio* 10:202-221.

Optional readings:

- Anderson, Elizabeth S. 1999. "What is the Point of Equality?" *Ethics* 109:287-337.
- Nozick, Robert. 1974. *Anarchy, State and Utopia*. Oxford: Blackwell, chapter 7.

Past Year Questions

Is a political concern for material equality as such really just a projection of envy? [2024 I]

Would it matter if the welfare of human beings on Earth were dramatically higher or lower than that of aliens in a far off galaxy with whom we will never interact in any way? What does your answer reveal about the significance of equality? [2024 II]

Is equality's value best explained by appeal to fairness? [2023]

Do egalitarians have any compelling answer to the Levelling Down Objection? [2022]

'Unlike prioritarianism and sufficientarianism, egalitarianism can explain what's bad about inequality.' Is this a powerful argument for egalitarianism? [2021]

Central Question: Does Equality Matter? Why and How Does it Matter

Rawlsian Egalitarianism

Utilitarianism and Intuitionism

- Rawls claimed that political theory was caught between utilitarianism and intuitionism which was an incoherent jumble of ideas and principles
- We have anti-utilitarian intuitions about a range of phenomena but intuitionism is unsatisfying
 - Intuitionism consists of a plurality of principles which may conflict and give no explicit method or no priority rules to weigh these principles against one another
 - Rawls thinks that the no priority challenge is a decisive one, at least to start looking for more anti-utilitarian alternatives: namely, his contractarianism

Rawls' Theory

- Principles of Justice
 - First Principle: Each person is to have an equal right to the most extensive total system of equal basic liberties compatible with a similar system of liberty for all
 - Second Principle: Social and Economic inequalities are to be arranged so that they are both (a) to the greatest benefit of the least advantaged, and (b) attached to offices and positions open to all under conditions of fair equality of opportunity
 - Lexical ordering of 1 > 2b > 2a
- We may summarise the crucial egalitarian intuition as the difference principle i.e. that all social primary goods – liberty and opportunity, income and wealth, and the bases of self-respect – are to be distributed equally unless an unequal distribution of any or all of these goods is to the advantage of the least favoured
 - We allow rather than prohibit the inequality that improves my initially equal share

Arguments for Rawls' Theory

- Intuitive Argument against the ideal of equality of opportunity
 - Equality of Opportunity Argument: we assume that inequalities of income and prestige are assumed to be justified if and only if there was a fair competition in awarding of the offices and positions that yield those benefits
 - Intuitive support draws on our idea that it is right for people's fate to be determined by choices rather than uncontrolled circumstances
 - Rawls' theory conflicts with this for while Rawls also requires equality of opportunity in allotting positions, he denies that the people who fill the positions are thereby entitled to a greater share of society's resources, on that basis of fair competition alone
 - We might pay such people more than average, but only if it benefits all members of society to do so

- Under the difference principle, people only have a claim to a greater share of resources if they can show that it benefits those who have lesser shares
- Rawls' objection to the Equality of Opportunity Argument: taken to its logical extreme, the argument should also include inequalities in natural talents. If it is unjust for people's fate to be influenced by race or gender, it is unclear why the same injustice is not equally involved when people's fate is determined by natural talents
 - Injustice in each case is the same – distributive shares should not be influenced by factors which are arbitrary from the moral point of view – natural talents and social circumstances are both matters of brute luck
 - Hence, the ideal of equality of opportunity is "unstable" for "once we are troubled by the influence of either social contingencies or natural chance on the determination of distributive shares, we are bound, on reflection, to be bothered by the influence of the other"
 - The attractive idea at the base of the ideal is that fate should be determined by choices and not circumstances, but the ideal arbitrarily limits this to only differences in social circumstances and not natural talents (as if it were one of our choices)
- Rawls therefore thinks that we need to arrange the basic structure so that "these contingencies work for the good of the least fortunate" which leads us to the difference principle so that "no one gains or loses from his arbitrary place in the distribution of natural assets or his initial position in society without giving or receiving compensating advantages in return"
- The Social Contract Argument
 - Historically thought to be weak because they are either historically absurd (if based on actual agreement) or morally insignificant (if it is based on hypothetical agreement by relying on outlandish assumptions)
 - Rawls' innovation: interpreting social contract arguments as a device for testing out the implications of certain moral premises concerning people's moral equality; we envisage to model the idea of the moral equality of individuals
 - Motivation: the point of Rawls' contract is to determine principles of justice from a position of equality i.e. "the original position of equality corresponds to the state of nature in the traditional theory of the social contract...It is understood as a purely hypothetical situation characterised so as to lead to a certain conception of justice"
 - His original position is not equivalent to usual states of nature which are rife with natural inequality: he wants to strip away any contingencies which characterise typical states of nature

- The original position aims to specify a point of view from which a fair agreement between fair and equal persons can be reached; but this point of view must be removed from and not distorted by the particular features and circumstances of the existing basic structure
 - Using the Veil of Ignorance
 - Embodies a certain conception of equality and extracting the consequences of that conception for the just regulation of social institutions → to criticise it we need to show either that (i) it fails to embody an adequate account of equality or (ii) different results would arise from it
- The participants in the Choice Situation
 - Rational beings with their own ends and capable of a sense of justice
 - Blocked by a veil of ignorance when choosing the principles of justice: no one knows his fortune in the distribution of natural assets and abilities, his intelligence, strength etc. Parties do not know their conceptions of the good or their special psychological propensities
 - Ensures no one is advantaged in the choice of principles by the contingency of social circumstance since all are similarly situated and no one is able to design principles in favour of his particular condition
 - Mutually disinterested but not egoist
 - Motivated by a thin theory of the good → want more of primary goods such as income, a wider sense of liberty and opportunity
 - All agents' life plans involve leading a life
 - Waldron: 'there is something like pursuing a conception of the good life that all people, even those with the most diverse commitments, can be said to be engaged in...although people do not share one another's ideals, they can at least abstract from their experiences a sense of what it is like to be committed to an ideal of the good life'
- Together with the veil of ignorance, the original position explains the property of the name "justice as fairness"
 - It conveys the idea that the principles of justice are agreed to in an initial situation is fair
 - The scheme agreed upon is hypothetically consented to, and is as close as one can get to a voluntary arrangement
- Circumstances of Justice
 - Among the general facts the parties know are "the circumstances of justice." Rawls says these are "conditions under which human cooperation is both possible and necessary".

- Following Hume, Rawls distinguishes two general kinds: the objective and subjective circumstances of justice. The former include physical facts about human beings, such as their rough similarity in mental and physical faculties, and vulnerability to the united force of others. Objective circumstances also include conditions of moderate scarcity of resources: there are not enough resources to satisfy everyone's desires, but there are enough to provide all with adequate satisfaction of their basic needs; unlike conditions of extreme scarcity (e.g. famine), cooperation then seems productive and worthwhile for people
- Argument from the maximin rule: Rawls argues that in the original position, agents would choose to maximise the minimum
 - Three conditions are said to obtain in the Original Position
 - A: Since the maximin rule takes no account of probabilities of how likely it is that the circumstances obtain for their respective worst outcomes to be realised, the first condition is that the parties have no reliable basis for estimating the probabilities of the possible social circumstances that affect the fundamental interests of the person they represent. This condition fully obtains when the concept of probability does not even apply
 - B: Since the maximin rule directs the parties to evaluate the alternatives only by their worst possible outcomes, it must be rational for the parties as trustees not to be much concerned for what might be gained above what can be guaranteed by adopting the alternative whose worst outcome is better than the worst outcome of all other alternatives. Let's call this best worst outcome the "guaranteeable level". The second condition obtains, when the guaranteeable level is itself quite satisfactory. It fully obtains when this level is completely satisfactory
 - C: Since the maximin rule directs the parties to avoid alternatives whose worst outcomes are below the guaranteeable level, the third condition is that the worst outcomes of all the other alternatives are significantly below the guaranteeable level. When those outcomes are far below that level and altogether intolerable, and must, if possible, be avoided, the third condition fully obtains
 - No second chance property and strains of commitment
 - Parties are seen as making an agreement; it is not simply that they each separately make the same choice → agreement

must be made in good faith, that is, not only with the full intention to honour it but also with a reasonable conviction that one will be able to do so

- Furthermore, there is no second chance and the agreement must be acknowledged in perpetuity
- Parties must weigh what we call the strains of commitment
 - They must ask themselves whether those they represent can be reasonably expected to honour the principles agreed to in the manner required by the idea of an agreement
 - No other agreement (without being guided by the maximin rule) can be made in good faith such as the arrangements following the principle of average utility
 - Only alternative that guarantees the fundamental interest of citizens as free and equal
- People cannot withdraw from the contract and thus must be able to sustain it even if they end up as the worst off in society
- Convergence of the two arguments: reflective equilibrium
 - Rawls argues that the social contract argument is justified by matching our considered convictions of justice
 - Potential problem posed for the social contract argument: we have to decide beforehand what our considered convictions are and hence our theory of justice is beforehand before knowing if the description of the original position is suitable
 - People who think X and not X would describe the original position differently and this dispute cannot be resolved via the contractual argument
 - So all major issues of justice would have to be decided beforehand, making the contract seem redundant
 - But the contract is not useless
 - Helps make our intuitions of justice vivid
 - Intuitions do not tell us what more is required, even if it rejects the ideal of fair equality of opportunities – the contract extracts the consequences of our intuitions
 - Provides a perspective from which we can test opposing intuitions
 - Someone who is naturally talented might object to the idea that talents are arbitrary but if that same person would not longer object were she ignorant of where she was going to end up in the natural lottery, then we can say with some confidence that our intuition was the right one

- Kymlicka thinks that the intuitive argument is the primary argument (contrary to Rawls) and the contract argument at best just helps express it
 - Don't even need contract: can use ideal sympathisers

Objections to Rawls' Arguments

- Compensating for Natural Inequalities: Rawls says that people's claim to social goods should not be dependent on their natural endowments, but he also allows too much room for people's fate to be influenced by arbitrary factors
 - Rawls defines the worst-off position entirely in terms of social primary goods and not natural primary goods in determining who is the worst off
 - Two people are equally well off for Rawls (in this context) if they have the same bundle of social primary goods, even though one person may be untalented, physically handicapped or mentally disabled i.e. if someone has a small advantage in social goods then she is better off even if the extra income is not enough to pay for extra costs she faces due to some natural disadvantage
 - The intuitive argument shows that natural primary goods are equally necessary for leading a good life, and people do not deserve their place in the distribution of natural assets and so it is wrong for people to be privileged or disadvantaged because of that place
 - We are only led to the difference principles if the only gains or losses we consider from the arbitrary place in the natural lottery are in terms of social goods → only ensures that the endowed do not get social goods just because of their arbitrary place and that the handicapped are not deprived of social goods just because of their place but it doesn't entirely mitigate the effects of natural accident and social circumstances
 - Rawls fails to have realised the full implications of his argument
 - He criticises: social inequalities are undeserved and should be rectified or compensated, but natural inequalities can influence distribution in accordance with equality of opportunity
 - Rawls claims that this is unstable since both natural and social inequalities are equally undeserved. But he endorses: social inequalities should be compensated and natural inequalities should not influence distribution
 - But if natural and social inequalities are really equally undeserved, then (2) is also unstable. Instead, we should say "Natural and social inequalities should be compensated"
- Problem of choice: how should we respond to people whose station in life are due to choices

- We normally think that unchosen costs have a greater claim on us than voluntarily chosen costs i.e. instead of working hard he chooses to play tennis which means that he has less income,
 - Consider someone who chooses to work on an incoming producing farm while someone else chooses to play tennis for fun. She bears the cost of her choice since she foregoes leisure, while he does not have to bear the cost of his choice since he does not forgo income, and instead expects his choice to be subsidised
 - She has to give up part of what makes her life valuable in order for him to have more of what he finds valuable → treated unequally for no legitimate reasons
- Difference principle creates rather than removes unfairness when inequalities in income are the results of choices and not circumstances
 - Paying for choices is the flip side of our intuition about not paying for unequal circumstances: unjust if people are disadvantaged by inequalities in their circumstances, but equally unjust for me to demand that someone else pay for the cost of my choices
- A distributive scheme should both be “endowment-insensitive” and “ambition-sensitive”: people’s fates should depend on their ambitions and not on their natural and social endowment
- Rawls also thinks that we are responsible for the cost of our choices, and this is why his account of justice is based on distribution of primary goods rather than welfare (circumvents the problem of expensive tastes)
- In sum, while Rawls appeals to this choice-circumstances distinction, his difference principle violates in two ways
 - Supposed to mitigate the effect of one’s place in the distribution of natural assets, but because Rawls excludes natural primary goods from the index which determines who is least well off, there is no compensation for those who suffer undeserved natural disadvantages
 - People are supposed to be responsible for the costs of their choices. But the difference principle requires that some people subsidise the cost of other people’s choices

Dworkin’s Resource Egalitarianism

Dworkin’s project

Goal is to be both ambition sensitive and endowment insensitive

- The Auction
 - The goal of egalitarianism for Dworkin is to create an ‘envy free’ distribution of resources → the test an egalitarian must meet to establish equality of condition is an ‘envy test’ → that no one prefers someone else’s bundle of goods to their own

- So, Dworkin sets up a hypothetical auction place where everyone has the same wealth and their bid for their most preferred bundle of goods subject to the preferences of others
 - The envy test cannot be passed by a mere division of resources → needs to be traced by subjective preferences of everyone
 - No one will envy another's bundle because by hypothesis, he would have been able to purchase that bundle
- The Insurance Scheme
 - Motivated by the problem of expensive tastes → we need to consider when a deficit in internal assets is so bad so as to require compensation since we do not want someone with having a trivial dissatisfaction, such as bad hair, to be entitled to compensation
 - Rely on subjective tastes: those who should be compensated for defects in internal assets are those who have purchased insurance against their having the defect if they were behind a veil of ignorance and did not know whether they would have that defect

Justification for Resources

- Rejects welfare because it is vulnerable to the problem of expensive tastes
 - "The various pieces of good or bad luck would be shared with others, because distribution would be based, not on any auction..., in which luck plays this whole, but on a strategy of evening out differences in whatever concept of welfare had been chosen"
 - Equality of resources offers no similar reason for correcting for the contingencies that determine how expensive or frustrating someone's preferences turn out to be
- Under equality of welfare, people are meant to decide what sorts of lives they want independently of information relevant to determining how much their choices will reduce or enhance the ability of others to have what they want
 - Under equality of resources, people decide what sorts of lives to pursue against a background of information about the actual costs their choices impose on other people and hence the total stock of resources that may be fairly be used by them → through market prices → elements of luck in the auction (how abundant x resource is) is the information acquired by individuals and used during decision making
- We are not allowed to use the contingent facts of raw material and the distribution of tastes as grounds to contest a distribution as unequal
 - They are merely background facts that determine what equality of resources is
- According to Kymlica, the envy test expresses the liberal egalitarian view in its most defensible form because it achieves the three main aims of Rawls' theory: (i)

respecting the moral equality of persons, (ii) mitigating the arbitrariness of natural and social contingencies, and (iii) accepting responsibility for our choices

- Such a distributive scheme would be just and allow some inequality, but there is no inequality in respect and concern, since each of them is able to lead the life they choose, and each has an equal ability to bid for that bundle of social goods that best serves their beliefs about what gives value to life

Resources and Natural Disability

- While we should not compensate for expensive tastes, we should compensate for natural contingency due to brute luck such as disability
 - Convert all brute luck into option luck → that is a gamble that is chosen by people based on their personalities and dispositions
 - Extra money cannot compensate natural disability → for example, someone who is mentally less abled will never be sufficiently compensated through money
- Dworkin's insurance scheme is a 'second-best' approach because full equality of circumstances is impossible
 - Behind the veil of ignorance with equal wealth, people choose based on the dispositions whether to insure against different disadvantages they may suffer naturally
 - It is not that the insurance scheme achieves actual equality of circumstances but it is the best we can do to live out our convictions of justice
- Becomes a scheme of redistributive taxation where the welfare payouts are essentially insurance payouts and the taxation on others is essentially insurance premiums
- Possible Objection: Arbitrary distinction between accidents touching preferences and natural disabilities
 - Link back to resources: Someone who is born with a serious handicap faces his life with what we concede to be fewer resources, just on that account, than others do, justifying compensation
 - The reason why there is less equality of resources when someone has a popular taste is because it makes goods more expensive for them → the auction brings to bear information about the resources that actually exist and the competing preferences actually in play and thus the auction is the only true measure of whether any particular person commands equal resources

Institutional Arrangements and Equality of Resources

- Equality of resources are disturbed by voluntary transactions → people may envy another's goods at any one time so we must apply the envy test diachronically → it cannot be that we redistribute resources every year because of some new envy that emerges

- The institutional arrangement for labour and wages passes the envy test so long as people do not envy another's bundle over time
- Equality of resources and laissez-faire institutional principles are incompatible
 - Equality of resources is not merely starting-gate → but it is devoted to whole lives → resources available to him at any moment must be a function of resources available or consumed by him at others, so that the explanation of why someone has less money now may be that he has consumed expensive leisure earlier
 - But what about unequal resources as a result of voluntary choices? → implicit assumption that the distribution of resources are due to his own choices

Objection to Dworkin

- Roemer's paper on 'Equality of Resources implies equality of welfare'
 - Intuitively, things become envy free only when I do not prefer others' bundle of good to mine → notice the use of 'prefer' → consider a bundle of good x → for me to decide how much to bid for it, I consider its welfare i.e. how much it matters to me or how much happiness it brings me
 - For resources to be envy-free means that it must ensure that it would allow each person to be able to achieve the same level of welfare i.e. it collapses into equal opportunity for welfare

Cohen's 'Equal Access to Advantage' Egalitarianism

- Cohen thinks that an objection towards welfare egalitarianism does not immediately resource egalitarianism because of the opportunity for welfare principle
 - But does the opportunity for welfare principle still not fall prey to the problem of expensive tastes? I do not see how opportunity for welfare is substantially different from welfare in this sense because in order to give the gourmet an equal opportunity for welfare as the thrifty, I probably need to give the gourmet 10 times as much money
- For Cohen, equality of opportunity for welfare is not as good as the reading that egalitarianism is to 'eliminate involuntary disadvantage'
 - The principle responds to inequalities in opportunities for welfare but advantage is broader than welfare
 - Anything which enhances my welfare is pro tanto to my advantage, but the converse is not true
- Cohen think that equality of resources is subject to objections which are just as strong as those which defeat equality of welfare (and opportunity of welfare)
- Cohen's objection: Consider an unfortunate person whose legs are paralysed and need an expensive wheelchair. Our egalitarian intuitions suggest that he should be given one.

- Against welfare: But our egalitarian intuitions do not do this with reference to people's utility functions, otherwise we need to differentiate between the varying welfare effects that disability has to different people → we compensate for the disability as such and not just for its disutility effects
 - Using welfare poses an explanatory failure on the currency of egalitarian justice
- Against opportunity for welfare: Tiny Tim is blessed with his fortunate disposition with abundant opportunity for happiness and is also actually happy; egalitarians would not on that account strike him off the list of free wheelchair effects
- Against resources: Consider that there is something wrong with his arms as well and can move them especially well but it is extremely painful to do so → it is not difficult but costly to do so. There is expensive medicine that can suppress the pain. Egalitarians would supply that man with medicine even if it costs what a wheelchair does but providing the medicine cannot be represented as compensating for a resource incapacity since moving his arms is, in a relevant sense, better than most people
 - Cohen agrees that it is his lack of the capacity to avoid pain which is the egalitarian ground for compensating the person
 - But Compensating for a lack of capacity which needs to be described in that way for the ground of compensation to be revealed cannot be represented as compensating for incapacity when that is opposed to compensating for welfare opportunity deficiency
 - There is an irreducible welfare aspect that cannot be accounted by resource egalitarians
- Cohen's point is that both opportunity for welfare and resources are too narrow of spaces to sufficiently encapsulate the egalitarian ethos
- Cohen's notion of equality of access to advantage: no systematic answer but welfare and resource deficiencies are distinct types of disadvantage and that each of them covers pretty distinct subtypes such as poverty and physical weakness
- Contrast with Dworkin's: (i) Dworkin calls for compensation for resource deficiencies only and not also for pain and other illfare considered as such. There is no place in Dworkin's theory for comparisons of welfare levels of different people nor for catering to people whose pains do not diminish their capacity while Cohen's cut awards redress for both resource and welfare disadvantages; (ii) Dworkin does not put the absence of responsibility in the foreground as a necessary condition of just compensation – Cohen accuses Dworkin of obscuring the differences between advantages and resources because advantages consists of all involuntary ills that can occur
- For Dworkin, it is not choice but preference which excuses an otherwise unjustly unequal distribution

- Compensation for power deficiencies but not for expensive tastes
- Cohen rejects this and argues that we should compensate for disadvantage beyond a person's control as such and that we should not draw a line between unfortunate resource endowment and unfortunate utility function
 - But he also maintains that a person with wantonly expensive tastes has no claim on us but neither does a person whose powers are feeble because he recklessly failed to develop them
 - There is no moral difference from an egalitarian point of view between a person who irresponsibly acquires (or blamelessly chooses to develop) an expensive taste and a person who irresponsibly loses (or blamelessly chooses to consume) a valuable resource
 - But how do you determine this?
 - Distinguishes among expensive tastes according to whether their bearer can reasonably be held responsible for them
- Difficult case for the opportunity for welfare egalitarian: cheap expensive tastes
 - Consider Jude who has cheap expensive tastes – cheap in the sense that they require less resources than everyone but expensive in the sense that Jude could achieve the same level of welfare with less resources had he not cultivated such tastes
 - A believer in Dworkin's style equality of resources would ignore Jude's tastes and their history and finds no reason to give him income less than anyone else
 - A believer in equality of opportunity for welfare has to keep Jude poor since he did not have to become a bullfight lover
 - Cohen believes he should still receive the funds to go to Spain but he should also accept some deductions because of his fortunate ability to get welfare out of resources
- Dworkin's test for involuntary tastes: 'wishes he did not have them'
 - Dworkin's considers them handicaps because they are part of one's environment rather than being inalienable aspects of his person → form no part of one's ambition
 - Cohen's four replies
 - Some people are too unreflective to form second order preference-repudiating preferences to actually satisfy Dworkin's test
 - Not all tastes which hamper the individual's life and therefore raise a case for compensation qualify as obsessions or subjectively repudiable tastes
 - Incoherent: Dworkin's music lover prefers not to have his unfortunate preference and yet by hypothesis prefers in having it → likely cannot help having it

- Suppose there was no such warning, that our unfortunate contracted his expensive taste innocently and that now we offer him an inexpensive un-repugnant therapy that would school him out of it
 - If he agrees to free therapy then the ideal of equality says he should get it regardless of whether he regrets it or is relieved
 - This suggests that the identification and dis-identification matter for egalitarian justice only if and insofar as they indicate presence and absence of choice
- Dworkin comes close to the basic choice/luck distinction but does not get fully there because luck (or chance) appears in his text as only one element in a set of unjust distributors, others being differences in initial advantages and in inherent capacity
- Cohen argues that we must eschew Dworkin's preferences/resources distinction in favour of a wider access-oriented egalitarianism
 - We can agree with him that 'it is perhaps the final evil of a genuinely unequal distribution of resources that some people have reason for regret just in the fact that they have been cheated of the chances others have had to make something valuable of their lives' But equalising those chances requires discriminating attention to what is and what is not chosen and not to what belongs to a preference as opposed to endowment
 - Kymlicka on how Dworkin corrects deficiencies in Rawls' theory: "it is unjust if people are disadvantaged by inequality of their circumstances, but it is equally unjust for me to demand that someone else pay for the cost of my choices"
- Centrality of choice
- Does the centrality of choice force us to confront the difficulty of free will → subordinate political philosophy to metaphysical questions
- Scanlon rejects the sovereignty of subjective preferences and argues for considerations over objective welfare → Cohen's advantages is congruent with Scanlon's point
 - Temple example vs health
- Cohen's egalitarianism necessitates two stages: (i) any deficit in welfare is treated as a possible case for compensation; (ii) whether it actually constitutes such a case is decided by facts about choice
- Scanlon's possible objections
 - Certain welfare deficits which reflect the subject's adherence to a religion raise no prima facie case for compensation because "it might destroy the point of religious burdens to have them compensated by social compensation...the idea that these burdens are grounds for such compensation (as a form of bad luck) is incompatible with regarding them as matters of belief and conviction which one values and adheres to because one thinks them right"

- Cohen's reply: revise to "compensate for disadvantages which are not traceable to the subject's choice and which the subject would choose not to suffer them" → addition of a counterfactual clause
 - The disadvantage is to be redressed is either exploitation of bad luck → burden of religious guilt vs that they are not advantageously disposed to meet the religious burdens → different burdens
 - Circumstances are not bad luck when they are so intrinsically connected with their bearer that their bearer would choose to suffer from them
- Scanlon rejects that it is possible for preferences to be our own volition – he rejects specifically the thesis that preferences may not be immediately subject to the will but there may be scope for volition in "the malleability of preference over time" i.e. preferences are manufactured by the person who has them – Scanlon: "if this were the whole basis for the voluntariness objection one would expect that, at least in principle, the actual genesis of a person's preference would be relevant to the strength of their claim to be satisfied. The very same intense interest might have arisen out of a conscious decision to "take up" a certain activity, or it might have grown almost unnoticed as a result of a series of chance encounters. Which of these is the case does not, however, seem to matter for the purposes of determining the strength of the person's claim on others for aid in the satisfaction of this interest"
 - Cohen rejects this suggestion that "the actual genesis of a person's preference" is irrelevant to the strength of his claim to have them satisfied
 - Scanlon suggests that something more appealing underwrites our reference to voluntariness – it is the very "fact that an interest, given its content, could have arisen" → voluntariness is not essential but what matters is merely the fact that it is possible in some close world
 - Basically, Justice should not cater to idiosyncrasy
 - Cohen thinks it is not appealing that just because an interest could or could not have arisen implies that it is not of urgent attention to justice
- Connection with capabilities
 - Thinks that Sen's use of capability is ambiguous
 - I think that Cohen's view of advantages remains weaker than Sen's view of capabilities
 - For Cohen, I suspect that what Cohen means by advantages are related to local endowments that are belonging to a person while Sen would include the socioeconomic or political structure of society in the notion of capabilities

- This has relevant policy differences: For Cohen, the only way to plausibly compensate someone is by the transfer of some divisible goods while Sen would advocate (just like Anderson) the establishment of access ramps in public spaces

Sufficientarianism

Target Argument: Economic Egalitarianism

- Economic Egalitarianism: desirable for everyone to have the same amounts of income and welfare
 - Commitment to the claim that economic equality has considerable moral value in itself
 - Does not deny that there are situations in which it makes sense to tolerate deviations from the standard of equality
- Even if we reject that economic egalitarianism has little moral importance, it does not follow that it is to be avoided or that it is undesirable
- Economic egalitarianism can be supported as valuable because it is a means to create or preserve certain noneconomic conditions deemed valuable
 - Argument from fraternity or community: prevalence of fraternity among the members of society is a desirable goal and equality is indispensable to it
 - Argument from status: inequalities in the distribution of economic benefits ought to be avoided because they lead to undesirable discrepancies of other kinds like social status, political influence etc
- Argument from utilitarianism: egalitarianism maximises aggregate utility
 - Presupposes (a) for each individual the utility of money invariably diminishes at the margin and (b) with respect to money, or with respect to the things money can buy, the utility functions of all individuals are the same
- Argument from intuition: economic inequality, considered as such, just seems wrong
 - The enjoyment by some of greater economic benefits than are enjoyed by others is morally offensive
- Nagel's argument from acceptability: the appeal of equality is based on an ideal of acceptability to each individual
 - A reasonable person should consider deviations from equality to be acceptable only if they are in his interest in the sense that he would be worse off without them
 - Nagel's example of the handicapped child: a family with one healthy and one handicapped child has a choice to move to the suburb where the healthy child would have more fun but the handicapped child less resources, or a city which has more resources for the handicapped child but the healthy child would have less fun → should move to the city

Frankfurt's sufficientarianism: Economic equality has little moral importance; what matters is that people have enough, not the same

- Argument from alienation: Frankfurt purports that attributing moral value to equality in itself encourages us to insist upon a level of economic support that is determined by a calculation in which the particular features of their own lives are irrelevant; it leads people to detach the problem of formulating their economic ambitions from the problem of understanding what is most fundamentally significant to them
 - It distracts people from measuring the requirements to which their individual natures and personal circumstances give rise and focus on how sizeable the assets of others are
 - This diverts a person's attention away from endeavouring to discover within his experience of himself what he himself really cares about and what will actually satisfy him
 - What others have might be important insofar as we want to estimate the resources one needs to compete with others, say on the job market, or what is normal to be had → but it is only contingently important insofar as it bears on one's own interests
- Argument from scarcity: suppose we are in a situation in which it is impossible for everyone to have enough. Then it would be a disaster to maintain that where some people have less than enough, no one should have more than anyone else. This would lead to disaster
 - Frankfurt also denies (probably generally) that where some people have less than enough, no one should have more than enough
 - Suppose two people have nothing and you have more than enough by two units. If the claim were true, you should give one unit each to the people that have nothing. But this does nothing to improve their condition
 - Both principles relies on the false presumption that giving resources to people who have less of them than enough necessarily means giving resources to people who need them and therefore, making those people better off → we may assign higher priority to improving the condition of those who are in need than to improving the condition of those who are not in need
- Against arguments for economic egalitarianism
 - Arguments that bear on egalitarianism supporting the creation of noneconomic conditions are highly contingent and treat equality as only derivatively valuable
 - The argument from utilitarianism fails because the assumptions are false: (b) is false because utility functions for money of different individuals are very different (perhaps due to discrepancies of tastes or mental impediments that limit the satisfaction one may derive) and (a) is false because we have good reason against expecting any consistent diminution in the marginal utility of money – we only think so because repetition of the same activity decreases

satisfaction – but this does not bear on the marginal utility of money because it is a generic instrument of exchange

- Positive argument for sufficientarianism
 - Frankfurt argues that what underlies our intuition that economic inequality is just wrong are actually cases in which some individuals have too little money, rather than less money than others
 - What strikes us is the qualitative, not quantitative nature of their situation: it is not the fact that the economic resources of those who are worse off are smaller in magnitude than ours but the different fact that these people are so poor
 - Mere differences in income are not in themselves distressing: we do not care about differences between the well-to-do and the rich
 - Egalitarianism and sufficiency are logically independent: considerations that support the one cannot be presumed to provide support also for the other
 - To show of poverty that it is compellingly undesirable does nothing whatsoever to show the same of inequality
 - Dworkin commits this error: the reason why America falls short of the desirable standard is not that society permits a situation in which a substantial minority of Americans have smaller shares than others, but rather that members of this minority do not earn decent livings
 - The real allegation is that society fails to provide each individual with “the opportunity to develop and lead a life he can regard as valuable both to himself and to [the community]”
 - Situations involving inequality are morally distributing only to the extent that they violate the ideal of sufficiency
 - The error of egalitarianism lies in supposing that it is morally relevant whether one person has less than another regardless of how much either of them has → it focuses too much on the relationship between the respective economic assets of two people which is independent of the amounts of their assets and satisfaction they derive from them as well as the attitudes of these people toward those levels of assets and satisfaction
 - Nagel supposes that the worst off individuals have (more) urgent needs in developing his theory of giving priority to the claims of those at the bottom as each individual with a more urgent claim has priority over each individual with a less urgent claim
 - Against Nagel: a reasonable person might well regard an unequal distribution as entirely acceptable even though he did not presume that any other distribution would benefit him less
 - The current distribution may provide him with quite enough and he might reasonably be unequivocally content with that

- Gratuitous to assume that every reasonable person must be seeking to maximise the benefits he can obtain
- What does it mean to have enough
 - Enough: meeting a standard rather than reaching a limit, after which it is not necessarily the case that having more would be bad
 - To say that a person has enough money means that he is content, or that it is reasonable for him to be content, with having no more money than he has i.e. the person does not (or cannot reasonably) regard whatever is unsatisfying or distressing about his life as due to his having too little money
 - If a person is (or ought reasonably to be) content with the amount of money he has, then insofar as he is or has reason to be unhappy with the way his life is going, he does not (or cannot reasonably) suppose that money would (either sufficiently or necessarily) enable him to become significantly less unhappy with it
 - Different from subsistence: people are not content with living on the brink and want to pursue their own projects and their own ends
 - But possible for someone who is content with the amount of money he has to be also content with an even larger amount of money and he might be pleased to receive more money and might be willing to sacrifice to gain more
 - Contentment: precludes his having an active interest in getting more; a contented person regards having more money as inessential to his being satisfied with his life
 - Money does not arouse in him any particular eager or restless concern, although he acknowledges the benefits if it were provided to him
 - No active interest does not entail that he prefers not to have it → the possibility of improving his situation is not important to him

Anderson's Relational Equality

Anderson's objection to luck egalitarianism is two-fold. First, she denies that the central value of egalitarianism is equality of fortune or condition. Instead, she considers respect for all as the central ethos of egalitarianism. Second, she denies that the fundamental consideration of egalitarians are welfare or resources but rather the social and institutional arrangements required to ensure that people stand in equal relation to one another – this will be achieved through having sufficient capabilities.

In a way, Anderson's Relational Egalitarianism criticises luck egalitarianism for fetishising what should not matter to us, or should not matter very much. A better approach is to look at distributive justice issues by asking what social and distributive arrangements are needed to establish and sustain a society of free, equal people, a society in which individuals all

relate as equals. Therefore, Anderson's argument can be interpreted as advocating for a sufficientarian approach to egalitarianism.

Respect as the central value of equality

- Anderson distinguishes between the negative and positive goals of egalitarianism
 - Negative: Egalitarians seek to abolish oppression – that is, forms of social relationships by which some people dominate, exploit, marginalise, demean, and inflict violence upon others
 - Positive: Egalitarians seek a social order in which persons stand in relations of equality. They seek to live together in a democratic community [of equals], as opposed to a hierarchical one
 - To stand as an equal before others in discussion means that one is entitled to participate, that others recognise an obligation to listen respectfully and respond to one's arguments, that no one need bow and scrape before others or represent themselves as inferior to others as a condition of having their claim heard
 - Any consideration of resources or distribution of goods is instrumental to the achievement of relational equality
- Argument from sociopolitical reality: Luck egalitarianism is divorced from sociopolitical reality, where the agendas of actual egalitarian political movements – such as gay and lesbian people seeking the freedom to appear in public as who they are without shame – are much broader than the mere 'distribution of divisible, privately appropriated goods, such as income or resources, or privately enjoyed goods, such as welfare'
 - Actual egalitarian political movements are about advocating for an egalitarian ethos of solidarity and respect for every individuals → about inclusion and minimising exclusion
- Argument from function of the state: Luck egalitarianism engenders an inappropriate expansion of what is deemed to be the legitimate business of the state. Suppose we distinguish roughly between misfortune that is imposed on people by social action and social arrangements and misfortune that just falls on people without being imposed by anyone. The distinction draws a line between inequality due to society and inequality due to nature.
 - "The proper negative aim of egalitarian justice is not to eliminate the impact of brute luck from human affairs, but to end oppression, which by definition is socially imposed"
- Anderson's conception of equality → desiderata for egalitarian principles of justice
 - First, such principles must identify certain goods to which all citizens must have effective access over the course of their whole lives → some goods are more important than others no matter the space of equality we consider
 - To lose access to such goods are unacceptable

- Second, egalitarians should be able to justify such guarantees of lifetime accessibility without resorting to paternalism
- Third, egalitarian principles should offer remedies that match the type of injustice being corrected
 - Private satisfaction cannot make up for public oppression
- Finally, such principles should be possible objects of collective willing
 - Social contract theory → fundamental obligation of citizens is to secure the social conditions for everyone's freedom
 - Unlike the libertarian, the egalitarian thinks that the social condition for everyone's freedom is to stand in relation of equality with others
 - Freedom and equality are not contradictory especially when we conceive of equality as relational: equals are not subject to arbitrary violence or physical coercion nor are they marginalised

Why Luck Egalitarians exhibit an ethos of disrespect

- What Luck Egalitarian theories are – Anderson calls them 'starting gate theories'
 - Just about giving everyone a fair start to life and punishing any imprudent choice made after
- Anderson claims that this punishment of the imprudent 'appears to give us some of the worst aspects of capitalism and socialism' and is not congruent with the image of egalitarianism as 'reflect[ing] a generous, humane, cosmopolitan vision of a society that recognises individuals as equals in all their diversity. It should promote institutional arrangements that enable the diversity of people's talents, aspirations, roles and cultures to benefit everyone and to be recognised as mutually beneficial'
- Problem 1 from the evils of capitalism: Offers a very inadequate safety net for victims of bad option luck
 - As long as people enjoy fair shares at the start of life, it does not much concern itself with the suffering and subjection generated by people's voluntary agreements in free markets
 - The fact that these evils are the product of voluntary choices hardly justifies them: free choice within a set of options does not justify the set of options itself
 - Luck egalitarianism focuses too much on the injustices of nature than the institutional arrangements that generate people's opportunities over time
 - Geographical Discrimination: Some people choose to stay near the San Andreas fault line → should he not be helped if an earthquake occurred at his home? Should Americans all crowd in Utah
 - Occupational Discrimination: The luck egalitarian would hold that disability resulting from being conscripted into the army should be compensated, but disabilities from patriotic volunteers should not

- Nothing to stop people from being bankrupt due to bad option luck from being exploited i.e. working in a sweatshop
- Problem 2 from the evils of capitalism: Using private (dis)satisfaction to justify public oppression
 - Cohen argues that ‘if Tiny Tim would still be happy without his wheelchair and sullen Scrooge would be consoled by having the money it costs, then Tim should have to give up his wheelchair to Scrooge’
 - These theories in relying on subjective evaluations and in aggregating over different dimensions of well-being, allow for private satisfactions to count as making up for publicly imposed disadvantages → oppression should not persist even if someone is satisfied under oppression
 - This reveals the problem in Dworkin’s insurance system in the sense that such an insurance system dependent on individual’s subjective tastes and preferences do not generate obligations for society
 - What one is obligated to do for others is not determined either by one’s own or even by the beneficiaries’ tastes → such taste relativity licenses discrimination against citizens with rare disabilities and against risk-loving citizens → for there is so little ex ante probability that they will get the disability that they choose not to insure against it
 - Analogy to law: the law is the paradigmatic case of societal obligation but all laws are independent of subjective tastes
 - Moreover, if everyone rationally purchased some insurance from themselves for plastic surgery to correct minor defects – this fact is hardly sufficient to generate an obligation for society to pay for it
 - Luck egalitarianism overlooks that market choices and tastes offer no guidance to what citizens are obligated to provide to one another on a collective basis
 - Egalitarianism must apply principles of collective willing
 - Rousseauian concerns of private wills vs the general will
- Problem 3 from the evils of socialism: interferes with citizen’s privacy and liberty and passes intrusive judgements
 - To implement the principle of equality of fortune (that no one should suffer from underserved misfortune), the state must make judgements on what misfortunes or fortunes are deserved → whether the lung cancer is deserved by the smoker
 - Hayek argues that such central merit based systems of reward are problematic: in order to lay a claim to some important benefit, people are forced to obey other people’s judgements of what uses they should have made of their opportunities, rather than following their own judgement

- Such a system requires the state to make grossly intrusive, moralising judgements of individual's choices
- Problem 4: Assumes atomistic egoism and self-sufficiency as the norm for human beings and unfairly penalises those who enter relationships with others that might generate obligations to enter into dependent caretaking
 - Some women, not because of a lack of talent, choose to develop and exercise talents that command little or no market wage such as taking care of children
 - Luck Egalitarians would say that such financial dependence on another is by choice and thus there should be no remedying of an injustice if any → the claim is that if women do not want to be subject to poverty and vulnerability, they should not choose to have children
- Problem 5: Expresses pity and disparages the internally disadvantaged and raises private disdain to the status of officially recognised truth
 - Nagel: "When racial and sexual injustices have been reduced, we shall still be left with the great injustices of the smart and dumb"
 - Luck egalitarians view individuals who have less internal assets than others as 'cursed' and unfortunate because their reason to their action of compensating is precisely that, to compensate another for bad luck or misfortune → undermines the dignity of a self-respecting citizen who can only be insulted by these messages
 - The Luck Egalitarian passes judgement on the internal worth of individuals and elevates this to political truth by passing a stamp of recognition
 - The Luck Egalitarian is moved by pity, rather than compassion → pity is condescending as it is an expression from the fortunate to the less fortunate
 - Pity aims to equalise suffering, while Compassion aims to relieve suffering → pity therefore is manifested as a distributive doctrine while compassion is mainly sufficientarian → once suffering has been relieved, compassion generates no further obligation towards equality of condition

What Relational Egalitarianism Is (by contrast with equality of fortune)

- Democratic equality aims to abolish socially created oppressions while equality of fortune aims to correct what it takes to be injustices generated by the natural order
- Democratic equality is a relational theory of equality and views equality as a social relationship while equality of fortune is a distributive theory of equality: it conceives of equality as a pattern of distribution.
- Equality of opportunity sees people as equal insofar as they enjoy equal amounts of some distributable good while democratic equality regards two people as equal when each accepts the obligation to justify their actions by principles acceptable to

other other, and in which they take mutual consultation, reciprocation and recognition for granted

- Certain patterns in the distribution of goods may be instrumental to securing such relationships but relational egalitarians are fundamentally concerned with the relationships within which goods are distributed and not only with the distribution of the goods themselves
- Democratic equality is sensitive to the need to integrate the demands of equal recognition with those of equal distribution: goods must be distributed according to principles and processes that express respect for all
 - Echo of sufficientarianism

Why Relational Egalitarianism exhibits an ethos of equal respect for all

- Determining the space: Anderson begins from the starting point of what freedom consists of via Sen's Capabilities Approach
 - A robust understanding of freedom opens the way to understand what it means to secure the social conditions for everyone's freedom
 - Anderson's theory begins from freedom to achieve equality
- Capabilities = access to sets of functionings that one can achieve, given the personal, material and social resources available to her
- What sorts of capabilities are we obligated to equalise: egalitarians aim for citizens to achieve functionings that enable them to be equal citizens while also functionings to remove oppression and domination
 - Advocates for equality across a wide range of capabilities but not comprehensive
 - Focus on capabilities that allow for functioning as an equal citizen: functionings as an equal political agent such as voting, political speech but also functioning as an equal participant in civil society
 - Able to participate in various activities of civil society more broadly including participation in the economy
 - Implies effective access to basic conditions of human agency (ability to deliberate about means and ends, the psychological conditions of autonomy) and biological existence
 - How do we compensate those who are mentally retarded?
- Sufficientarian tenor: Democratic equality guarantees not effective access to equal levels of functioning, but effective access to levels of functioning sufficient to stand as an equal in society
 - Sometimes, requires equality → such as voting
 - But for stuff like income → not necessary
- The capability approach informs us that equality is not merely the distribution of divisible goods, but requires considerations of social relations and norms and the structure of opportunities, public goods and public spaces

- It does not think that to make a naturally disabled individual to stand as equal to others requires giving them money → rather, it involves ensuring that there are accessible ramps for wheelchair bound in public spaces or access to adequate nutrition
- Principles of production and distribution: Anderson still needs to develop a theory of distribution → who should get what
 - For those capable of working and with access to jobs, the actual achievement of these functionings is, in the normal case, conditional on participating in the productive system → but then does this not create a lack of safety net and still makes intrusive judgements on whether a person is actually putting in effort → perhaps the way around this is that there is a minimal reasonable level of output that tracks effort → difference between imprudence vs lazy
 - We do not owe people the real freedom to be beach bums
- Theory of distribution: workers are to regard the economy as a system of cooperative, joint production
 - People regard every product of the economy as jointly produced by everyone working together
 - To credit specific individuals for some slice of production is to arbitrarily cut through an interconnected web of complex production → each worker's input depends on an array of preconditions
 - The principles that govern the division of labour and the assignment of particular benefits to the performance of roles in the division of labour must be acceptable to everyone in this sense → interpersonal principle of justification: any consideration offered as a reason for a policy must serve to justify the policy when uttered by anyone to anyone else who participates in the economy as a worker or a consumer
- System of cooperation provides a safety net through which even the imprudent can never fall through
 - No role in the productive system shall be assigned such inadequate benefits that given the risks a person could be deprived of the social conditions of their freedoms
- Income policy: begins from the place that they appreciate the role which low income workers fill rather than thinking whether low income workers are there by choice
 - They free up spaces for high income workers to use their talents to increase production
 - Corporate executives may not cut so many deals if they had to answer their own telephone calls → calls for a mode of distribution where everyone benefits from the diversity of talents and roles in society and undermines the lopsided thought that workers at the top make a lopsided contribution to the so called social product

- Motivates a conception of reciprocity that squeezes the gap between the highest and lowest paid workers
- This macrostructure of society that Anderson envisions is her way of arguing for a institutional and political arrangement whereby
 - It is not by merely appending a scheme of redistributive taxation to our current capitalist system
- Rawls' difference principle: democratic equality envisions a less demanding form of reciprocity → once all citizens enjoy a decent set of freedoms, sufficient for functioning as an equal in society, income inequalities beyond that point do not seem so troubling in themselves
 - Income inequality is only a concern insofar as they are converted into status inequality

Argument from the ideal of equality: The priority of respect over fairness

- Wolff: Reject the lexical priority of fairness i.e. that egalitarianism is constituted by a lexically prior notion of fairness
 - The lexical priority of fairness underwrites much of egalitarian thought
- Egalitarian Ethos: Tawney argues that the currency of egalitarian justice is not wealth but a certain conception of human flourishing
 - More to a society of equals than a just scheme of distribution of material goods
- What is the Egalitarian Ethos?
 - Predominant conception is of fairness – that all other egalitarian values are subordinate to fairness
 - Fairness is the demand that no one should be advantaged or disadvantaged by arbitrary factors
- Rejoinder to fairness: Respect as the Egalitarian Ethos → the eventual goal is an ideal of a society of free standing equals
 - There are certain behaviours and attitudes that underline respect or disrespect
 - Egalitarianism partially derives from the thought that others are generally equally as deserving of respect as I am
 - Connection with citizenship: failure of common courtesy, failures of trust and shameful revelation
- Highly conditional welfare benefits do not inspire respect
- Fairness and respect do come into conflict
 - Welfare claimants are treated with great rudeness and are routinely humiliated → but usually a failing of individuals
 - Lack of trust: we utilise highly rigorous and punitive control to make sure that people correctly report their situation → eliminate free riding

- We send a message that anyone unemployed and makes a claim for benefit is prima facie an object of suspicion
- Shameful revelation: there is a zeitgeist of shame in revealing that oneself is eligible for welfare payouts
 - One must show that he or she fails to have the opportunities that others have → these are not usually objective deprivations i.e. formal or legal barriers but subjective ones i.e. to do with their talents
 - It is demeaning to have to admit to oneself and then convince others that the reason I cannot secure a job is because of my own insufficiency
 - This is better than Anderson's argument of condescension → under relational egalitarianism, we need not know the reason for one's lack of capabilities because it is outcome oriented

Parfit's Prioritarianism

- Two assumptions
 - First, people can be worse off than others in ways that are morally relevant
 - Second, these differences can be matters of degree
- Nagel's example
 - In both cases, the second child is much worse off
 - By the utilitarian/consequentialist lights, the family should move to the suburb but our intuition is that the family should move to the city

	First Child	Second (Handicapped) Child
Move to City	20	10
Move to Suburb	25	9

- Egalitarianism: about people's being equally well off (Not about whether everyone has equal rights etc)
 - Teleological Egalitarians: It is in itself bad if some people are worse off than others (Principle of Equality)
 - Most of us are pluralist egalitarians (as opposed to pure egalitarians who only care about equality and not utility): it would be better if there was more equality and if there was more utility
 - Consider the following possibilities: (1) Everyone at 150, (2) half at 199, half at 200, (3) half at 101, half at 200
 - Pure egalitarians think that (1) is the best while utilitarians think that (1) is the worst.
 - Pluralist egalitarians would not consider (1) as best or worst, and think that (1) is worse than (2) as it is much worse in terms of utility but a

bit better in terms of equality, but better than (3) as it is better in terms of equality and only a bit worse in terms of utility

- The pluralist egalitarian view may be subject to a no-algorithm type objection
 - Consider (a) Everyone at 150 vs (b) Half at N, Half at 200 → for which values of N would we believe (a) to be worse than (b) → between 120 and 150 it is hard to answer
- Intrinsic value
 - Egalitarians are committed to equality having intrinsic, not merely instrumental, value → besides having bad effects, inequality is in itself bad and so we shall think it to be worse and we may think it to be bad even without bad effects
 - Divided World: suppose 2 halves of the world's population are unaware of each other's existence. Consider next two possible states of affairs
 - (1) half at 100, half at 200 and (2) everyone at 145
 - Of these two states, (1) is better than (2) in terms of utility but we may believe that all things considered (1) may be worse than (2)
 - If we are Telic Egalitarians, our explanation would be that while it is good that, in (1), people are on average better off, it is bad that some people are worse off than others. The badness of this inequality morally outweighs the extra benefits
- Deontic Egalitarians: it is not itself bad if some people are worse off than others; when we ought to aim for equality, that is always for some other moral reason
 - Appeals to claims about comparative justice: whether people are unjustly treated in this comparative sense depends on whether they are treated different from other people
 - Noncomparative justice: whether people are unjustly treated depends only on facts about them → if we treated everyone equally unjustly, there would be no comparative injustice
 - Noncomparative justice may require us to produce equality but only derivatively: if everyone were equally deserving, we should make everyone equality well off; equality would merely be a side effect of giving people what they deserved → only comparative justice makes equality our aim
 - Further kinds of justice
 - Purely procedural justice: requires only that we act in a certain way i.e. having a fair way to distribute an indivisible good like having a lottery
 - Substantive justice: justice may require a procedure but there is a separate criterion of what the outcome ought to be i.e. be given equal share

- So two kinds of egalitarianism: On the Telic view, inequality is bad; on the deontic view, it is unjust
 - Even if the fact that inequality is unjust implies it is bad, it does not diminish the distinction: injustice is a special kind of badness, one that necessarily involves wrong doing
 - The case in which inequality is unavoidable implies that there can be no injustice and hence morally permissible by the Deontic Egalitarian's lights, but can still be bad according to the Telic Egalitarians
 - E.g. Some of us are born more talented than others. Deontic Egalitarians would not believe that such inequality is in itself bad but many telic egalitarians may say that even if such inequality is unavoidable, it is in itself bad
- Telic views are likely to have wider scope:
 - If inequality is in itself bad, then we may think it bad whoever the people are between whom it holds i.e. makes no difference whether people are in the same or different communities
 - It is also irrelevant what the respects are in which some people are worse off than others (any inequality like less income, less health etc is bad)
 - Also irrelevant how the inequality came about
- Deontic Egalitarians may depart from this
 - Question of who matters: Contractarian views appeal to the idea of reciprocity or mutual benefit → when goods are co-operative produced and no one has special claims, all the contributors get equal shares
 - What is shared are only the fruits of cooperation and the distribution covers only those who produce these goods → those who cannot contribute, such as the handicapped or children or future generations, have no claims
 - Some are less restrictive and include all of the community but exclude outsiders → irrelevant that in other communities, there are people who are worse or better off
 - Question of causation: may cover only inequalities that result from acts or those that are intentionally produced
 - One such view is that when we are responsible for some distribution, we ought to distribute equally but when no one is responsible, inequality is not unjust and there is nothing morally amiss
- Objections to the Telic View
 - Too wide: because any inequality is bad, it licences us to take eyes from the sighted and give them to the blind

- Reply: after some genetic change, children are henceforth born as twins, one of whom is always blind. Suppose that as a universal policy, operations are performed after every birth in which one eye from the sighted twin is transplanted into the blind sibling. This is nonvoluntary but Parfit is inclined to think that this is justified
 - Telic Egalitarians may accept the conclusion that the State ought not to intervene and redistribute, but that is because they are pluralists and value and think that equality is not the only value
 - They only claim that if we all had one eye, this would be in one way better than if half of us had two eyes and the other half had none
- Levelling down objection: suppose that in some natural disaster, those who are better off lose their extra resources and become as badly off as everyone else. The telic egalitarian must be committed to the claim that it is in one way better than the initial state of affairs
 - Not simply that it is wrong to produce equality by levelling down (since egalitarians can accommodate this by saying the gains in equality is outweighed by some other value); rather, it is the fact that our intuitions suggest that there is nothing good about what has happened we have done
 - Deontic view avoids this objection: we may believe that we have a reason to remove equality only when, and only because, our way of doing so benefits the people who are worse off or we may believe that when some people are worse off than others, through no fault of theirs, they have a special claim to be raised up to the level of others but no claim that others be brought down to their level
- Costs of giving up the Telic view: If inequality is not in itself bad, we may find it harder to defend our view that we should often distribute resources
 - In the divided world case, we might prefer the case of equality even if the communities are unaware of each other, because we might be especially concerned about those people who are worse off
- Prioritarianism: Benefiting people matters more the more worse these people are (worse in absolute terms, not relative term)
 - Nagel: If one chooses to move to the city, it would be an egalitarian decision. It is more urgent to benefit the second child... This urgency is not necessarily decisive... An improvement in [the second child's] situation is more important than an equal or somewhat greater improvement in the situation of the first child
 - Beyond the utilitarian view: it is more urgent to help these people even if they are harder to help

- While utilitarians claim that we should give these people priority when, and because, we can help them more, this view claims that we should give them priority even when we can help them less
 - For utilitarians, the moral importance of each benefit depends only on how great the benefit of helping the worse off would be for prioritarians, it also depends on how well off the person is to whom this benefit comes
- Extensional Claim: Should weigh the benefit received by the worse off more
 - Priority is not lexical/absolute → benefits to the worse off could be morally outweighed by sufficiently great benefits to the better off
- Explanatory Claim: prioritarians do not believe in equality or that it is itself bad or unjust. The reason why we give priority to the worse off is not because we aim towards equality, but only that if I am worse off than you, benefits to me matter more
 - It is partly because I am worse off than you, but has nothing to do with my actual relation with you
 - People at higher altitudes find it harder to breathe. Is it because they are higher up than others? In one sense yes, but they would find it just as hard to breathe even if there were no other people who were lower down
 - On the priority view, benefits to the worse off matter more, but that is only because people are at a lower absolute level; it is irrelevant that these people are worse off than others → benefits to them would matter just as much even if there were no others who were better off
- Difference with egalitarianism: egalitarians are concerned with relatives but prioritarians are concerned with absolute levels
- Advantages of Prioritarianism
 - Problem of inclusion: naturally has universal scope; if it is more important to benefit one of two people, because this person is worse off, it is irrelevant whether these people are in the same community or are aware of each other's existence. The greater urgency of benefitting this person does not depend on her relation on the other person, but only on her lower absolute level
 - I.e. gives a pretty natural (and different) explanation for why we prefer arrangement (2) in the divided world case, to arrangement (1)
 - Levelling down objection: the priority view avoids the objection because except when it is bad for people, inequality does not matter – we give weight to the worse off due to their absolute, not relative levels
 - We may re-express many ideas of equality in terms of priority and still capture much of their moral force
- Plausible views which are rightly expressed in egalitarian terms

- Cohen: the right reading of egalitarianism is that “its purpose is to eliminate involuntary disadvantage” → he means by this *comparative* disadvantage which is essentially relational and only equality could eliminate such advantage and cannot be re-expressed in terms of priority
- Against the Levelling Down Objection
 - Strong Egalitarians: do not believe that the avoidance of inequality is decisive, but regard inequality as a great evil such that a move to inequality can make an outcome worse even when this outcome would be better for everyone
 - Moderate Egalitarians: do not believe that a state of equality is better all things considered, but that it is in one way better than an arrangement in which everyone is weakly better off with some equality
 - Dismissed too quickly: if some change would increase inequality but in a way that is worse for no one, the inequality must come from benefits to certain people. And there cannot be a great loss of equality unless these benefits are also great. Since these gains and losses would roughly march in step, there is room for Moderates to hold a significant position. In all such case, the gain in utility would outweigh the loss in equality
 - In many other cases, moderates can claim that some gains in utility even if great would not outweigh some losses in inequality
 - (a) All at 100, (b) Half at 100, half at 200, (c) half at 70, half at 200: moderates believe that (b) > (a) but believe that (a) > (c)
 - To challenge the moderates, we must defend the claim that when inequality is worse for no one, it is not in anyway bad
 - Person-affecting view: nothing can be bad if it is bad for no one
 - To explain the impersonal sense in which one of two outcomes can be worse, we must appeal to claims about what would be worse for particular people
 - Can also be supported by contractualism
 - Parfit thinks the person affecting view has less plausibility than the Levelling Down Objection
 - Overall, Parfit does not think that the Levelling Down Objection is decisive, even if it has great force

Nozick's Libertarianism

Summary: In *Anarchy, State and Utopia*, Nozick advanced the libertarian thesis that equality cannot permissibly be generated out of political obligation; while equality might be valuable, it must emerge (if at all) from voluntary choices of individuals. A state-mandated egalitarianism, he argues, conflicts with liberty which he grounds in his central concept of ‘self-ownership’. For Nozick, this side constraint of ‘self-ownership’ manifests itself in terms of property rights: (1) I have control and full ownership of my mind and body, and (2) I have

a right to all of the income that I can gain from my mind and body. The corollary of the inviolability of full self-ownership is that the principles of distributive justice must be *historical* in nature. Because of self-ownership, all that needs to be ensured for a distribution *D* to be just is that the income or goods I gain are actually generated by my mind and body – that the initial acquisition must be just and that the transfer of goods must be just (i.e. voluntary). The egalitarian impulse of equality, Nozick suggests, is inherently patterned in nature – goods must be distributed along some equal distribution *E*. But because full self-ownership involves a result insensitive distribution – that of the free market – any external attempt to order the distribution along some other dimension of equality is a violation of self-ownership, and therefore liberty. Therefore, because state-imposed equality is patterned and result-oriented in this way, while liberty and self-ownership is not, liberty and equality conflict.

Theory of Moral Constraints and thesis of self-ownership

Nozick motivates the notion of rights and their priority from self-ownership, thereby acting as moral constraints that the state cannot violate. These moral constraints are so stringent and so far-reaching that the only permissible state is the ultraminimal state or the night-watchman state i.e. the state only tax for protective services

- The Night Watchman state's tax is not redistributive because redistribution is appealing to the sorts of reason for an arrangement rather than an arrangement itself
 - So, non-redistributive reasons may be plausibly consistent with the Night Watchman and the Libertarian's thesis
- Moral Constraints: Rights act as moral constraints that narrow the means in which we can attain a goal and the range of goals that are attainable
 - We are not utilitarian of rights whereby we can make trade offs between rights of one vs rights of five → it is not permissible to violate one person's right to minimise the rights violated in the society
 - Some contact with Mill's harm principle here
- Justification: why rights as side constraints rather than being a utilitarian of rights
 - Underlying Kantian principle that individuals are ends and not merely means and may not be sacrificed or used for the achieving of other ends without their consent
 - Individuals are inviolable
 - If constraints on a tool were overridable or conditional on something, the tool may not be completely yours, but it nevertheless is a tool
 - Side constraints express the inviolability of other persons

Argument for Entitlement theory of distribution #1: Self-ownership

- Derivation of Self-ownership from the Kantian Principle

- Deriving self-ownership and stringent rights from moral form to moral content: the form of morality includes F (moral side constraints); the best explanation of morality's being F is p (a strong statement of the distinctness of individuals); and from p follows a particular moral content, namely the libertarian constraint → not sufficient to just derive an anti-aggression constraint from the fact that individuals have their own lives to lead
 - Wants to search for a trait of humans that the moral side constraint is on
- Contrast with animals who have no stringent side constraints → people are distinguished from animals in terms of rationality, free will and moral agency but Nozick claims that we have been unfair in treating them separately
 - Instead, when combined they add up to something significant: "a being able to formulate a long-term plans for its life, able to consider and decide on the basis of abstract principles or considerations it formulates to itself and hence not merely the plaything of any immediate stimuli, a being that limits its own behaviour in accordance with some principles or picture it has of what an appropriate life is for itself and others, and so on"
 - This ability to shape one's life is necessary and fundamental to strive for a meaningful life → to violate this is to violate their distinction and esteem as a human
- Formulation of the Self-ownership thesis and implications
 - Otsuka: (i) A very stringent right of control over and use of one's mind and body that bars others from intentionally using one as a means by forcing one to sacrifice life, limb, or labour, where such force operates by means of incursions or threats of incursions upon one's mind and body; (ii) A very stringent right to all of the income that one can gain from one's mind and body (including one's labour) either on one's own or through unregulated and untaxed voluntary exchanges with other individuals
 - Egalitarians agree with (i) but disagree with (ii); Nozick thinks that (i) implies (ii)
 - G. A. Cohen: The core idea is that agents own themselves in just the same way that they can have maximal private ownership in a thing. This maximal private ownership is typically taken to include the right to fully manage (to use, and to allow or prohibit others from using); the right to the full income; the right to transfer fully any of these rights through market exchange, inter vivos gift, or bequest; and the right to recover damages if someone violates any of these rights. Redistributive taxation (e.g. income or wealth) is incompatible with these rights of maximal private ownership

- Critical point is the last: from the cardinal “principle that each person is the legitimate owner of his powers”, it follows that redistribution is taxation is theft.
- Connection with equality: Nozick’s conception of equality begins with rights over one’s self and that everyone has the same of such inviolable rights because they are equal

Objection to Rawls’s Theory of Justice: the patterned/historical distinction

Rawls’ theory: (1) Liberty Principle, (2a) Difference Principle and (2b) The Equal Opportunity Principle

- Rawls views the issue of justice arising through the view of society as a cooperative venture for mutual advantage → people undertake new duties but also generate new benefits when entering society
- The issue of distributive justice is therefore the just division of this social product and of the burdens that produce this
- Rawls this that 2a captures the fair terms of this cooperation
- The reason, for Rawls, why the most well-off are not entitled to what they could maximally achieve under any other scheme of cooperation is because the reason for their success is due to factors ‘arbitrary from a moral point of view’
 - In short, the reason why other institutional and distribution arrangements have no valid claim over his is because he denies the notion of meritocracy as one that is possible

Nozick’s three replies to Rawls

- Argument from diminished conception of persons: “This line of argument can succeed in blocking the introduction of a person’s autonomous choice and actions (and their results) only by attributing everything noteworthy about the person to certain sorts of ‘external’ factors. So denigrating a person’s autonomy and prime responsibility for his actions is a risky line to take for a theory that otherwise wishes to buttress the dignity and self-respect of autonomous beings.”
 - Creates an ‘untenable metaphysics of the self’
 - Corollary: If we deny positive desert claims, we must also consistently deny negative desert claims i.e. criminals and punishment since a criminal character is a natural liability so to speak → but there are other ways in which we can justify punishment (utilitarian means)
- Denying arbitrariness: Nozick argues that entitlement and desert come apart → being entitled to x does not equal being deserving of x
 - For instance, winning a lottery might not invoke the concept of desert as much as it is invoking the concept of entitlement
 - So, some people may be entitled to their natural assets even if these are undeserved → possession therefore becomes not morally arbitrary

- Compatible with Rawls' conclusion that desert is a metaphysically troublesome concept
- Furthermore, differences in natural assets might be correlated with other differences that are not arbitrary from a moral point of view and that are clearly of some possible moral relevance to distributional questions e.g. Hayek argues that under capitalism distribution generally is in accordance with perceived service to others, which is correlated with differences in ability to serve others
- Argument from the separateness of persons: the difference principle requires that we prevent the better endowed from gaining extra material benefits from themselves unless this would improve the position of the worst off – but this seems to be using the better endowed as a resource for less well endowed, sacrificing one person's welfare for the sake of another – and Rawls fails by his own standards since he accuses the utilitarian of seriously falling for ignoring the separateness of persons
 - Rawls treats natural assets as some sort of collective asset and that everyone has some entitlement on the totality of natural assets with no one having differential claims
 - And we can only square Rawls' view with Kant's own view of treating men as ends in themselves only if we press very hard on the distinction between men and their talents, assets, abilities and special traits → but this means that there is very little of a coherent conception of a person
 - There is 'no social entity with a good that undergoes some sacrifice for its own good. There are only individual people, different individual people, with their own individual lives. Using one of these people for the benefit of others, uses him and benefits the others. Nothing more.'
- Less important arguments
 - Ad hoc nature of difference principle: Rawls' specify that institutions should place priority on the worst off group. But why would individuals focus on groups and not the worst off individual?

Argument for Entitlement Distribution #2: Against Patterned Theories

- Patterned Theories: current-time slice or end state principle
- Historical Theories: take into account past actions or circumstances → "each according to their contribution" is one such historical view
 - Justice in distribution does not require information on the actual distribution itself but how the distribution came about
- Nozick argument against patterned theories can be interpreted as follows:
 - P1: Self-ownership implies that liberty has priority over all other values i.e. our liberties act as moral constraints in what the state can do
 - P2: Liberty, through voluntary transfer, must upset any patterns of distribution. Call this the Wilt Chamberlain Argument

- P2a: Equivalently, any patterned theory of justice necessitates involuntary redistribution
- P4: Therefore, no patterned theory of justice can be just
- Wilt Chamberlain Argument: Let us assume that the egalitarian's preferred distribution is achieved. Call this D1. Wilt Chamberlain is greatly in demand by basketball teams, being a great gate attraction...[and] signs the following sort of contract with a team: In each home game twenty-five cents from the price of each ticket goes to him.[...] Let us suppose that in one season one million persons attend his home games, and Wilt Chamberlain ends up with \$250,000, a much larger sum than the average income and larger even than anyone else has. Is he entitled to his income? Is this new distribution D2 unjust
 - Maintaining D1 requires continuous interference with people's lives and is hence a serious and unacceptable infringement of liberty
- Conclusion from the Chamberlain argument:
 - C1: Voluntary transactions necessarily disrupt patterns
 - C2: If D1 was just, and people moved voluntarily from D1 to D2, then D2 is also just
 - C3: Restoring patterns requires continuous and unacceptable intrusions into people's lives
- Objections to the Wilt Chamberlain Argument
 - Against C1: Nozick's illustration biases matters in his own favour. Many egalitarians do not just advocate for capitalism with equal money but for a transformation of society
 - Against C2: question the implicit premise that whatever is achieved by voluntary steps is just
 - Practical Problem: not easy to tell if a transaction is just → "Your money or your life".
 - Nozick says that what constitutes involuntariness is as follows: "First, one's options must be restricted by actions of others, and second, these constraining actions must themselves violate rights"
 - So, the propertyless proletariat's rights are not being violated by virtue of his environment so he still is not 'choiceless'
 - But if Nozick defends C2 on the basis of intuition and we realise that he is not using it in a way that aligns with our intuitions about voluntariness (by saying that the propertyless proletariat is free), then it weakens his argument
 - Is transfer according to mistake voluntary?
 - Against C3: Not necessarily a system of transfer as rigid as Nozick suggests → filling up taxation forms do not feel like an egregious affront to our liberty

- Also, egalitarians need not necessarily hope for one pattern but a range of patterns (sufficientarianism that relieves suffering from poverty) aka Anderson
- But Nozick would say all that matters is taxation happens: taxation is on par with forced labour

Nozick's own entitlement theory

Nozick's entitlement theory has three main principles

1. A principle of transfer – whatever is justly acquired can be freely transferred
2. A principle of just initial acquisition – an account of how people come initially to own the things which can be transferred in accordance with (1)
3. A principle of rectification of injustice – how to deal with holdings if they were unjustly acquired or transferred
4. Implicit conclusion: No one is entitled to a holding except by (repeated) applications of 1 and 2

The conclusion of Nozick's entitlement theory is that 'a minimal state, limited to the narrow functions of protection against force, theft, fraud, enforcement of contracts, and so on, is justified; any more extensive state will violate persons' rights not to be forced to do certain things, and is unjustified'. The alleged corollary of this is that there is no public education, no public health care, transportation, roads or parks since all of these involve the coercive taxation of some people against their will, violating the principle 'from each as they choose, to each as they are chosen'.

Principle 1: Justice in Acquisition and the Lockean Proviso

- Rejects the fact that 'right of first claimant' is legitimate in any way
- Lockean View of Initial Acquisition: Nozick says that 'Locke views property in an unowned object as originating through someone mixing his labour with it'
 - Nozick argues that this gives us the insight as to why one's right to private property are just as strong as rights to one's person or body: they are based on something very like body rights, rights to control one's labour
 - But it cannot be just about mixing because "If a private astronaut clears a place of Mars, has he mixed his labour with...the whole uninhabited universe, or just a particular plot"
 - Why is this not a way of losing what I own rather than gaining something that I did not
 - Locke addresses this through the Lockean proviso: that appropriating a land gives back to mankind more than one takes → but is problematic because why do you not just gain the increment rather than the whole plot
- Three interpretations of Nozick's reaction to Locke

- First, to suppose that Nozick broadly accepts Locke's 'labour-mixing' defence of private property, and though he criticises Locke's arguments, an amended Lockean position is ultimately acceptable
 - But Nozick gives no suggestions about how the labour-mixing argument can meet its objections and Locke handles it via theology which Nozick cannot appeal to
- Second, Nozick rejects Locke's argument but concludes that a version of the Lockean proviso is a necessary condition for the justification of appropriation. On this interpretation, no suggestion as to what are the sufficient conditions is made by Nozick
 - This says that Nozick has no theory of justice in acquisition → means that Nagel's criticism as libertarianism without foundations is even more significant
- Third, Nozick is taking and using the Lockean Proviso as a necessary and sufficient condition for the justification of appropriation (though adapting it)
- Lockean and Nozickian Proviso
 - Locke's proviso is that there be "enough and as good left in common for others" as a necessary condition for you to acquire an unowned piece of land
 - An objection that Nozick has to deal with is that perhaps it was true of land once that there was enough and as good left in common for others and permitted X's acquisition. But it is not true now. So, it must be the case that we can 'zip back' all the way to X's acquisition to say that X's acquisition was impermissible
 - Nozick resists the objection is through the thought that even if there is not enough and as good land for another, there still may be, as a result of appropriation, other things which counterbalance the "diminution in opportunity"
 - A system of private property makes people better off because it "increases the social product by putting means of production in the hands of those who can use them most efficiently..."
 - Compensates non-owners
 - This motivates the Nozickian Proviso: You may acquire previously unowned land (and its fruits) if and only if you make nobody else worse off than she would have been in a state in which no land is privately held but each is free to gather and consume food and water from the land and make use of it
 - Critics think that Nozick, once he admits such a proviso into his argument, blurs the line between his argument and patterned theories because it introduces a patterned element in a theory because it is no longer defined wholly by its procedures but by its effects on others

Principle 2: Justice in Transfer

- Nozick thinks that it is 'not clear' how people can reject the entitlement theory of justice solely on the principle of justice in transfer
- Focuses on a transfer being just if and only if it is voluntary and Nozick thinks that because justice in transfer appeals to procedures rather than the actual distribution itself, it is incompatible with and thus forces us to reject any patterned theory
- Analogue development of argument under Wilt Chamberlain argument
- Taxation = Forced labour
 - It is equivalent to asking the a farmer to work, on the threat of imprisonment, that 10% more to give the starving children food

Principle 3: Justice in Rectification

- More questions than answers
 - If you make a fortune from a stolen pound, do you pay back the pound or the fortune
 - Is it ever right to let bygones be bygones and relatedly how far must one go in wiping clean the historical slate of injustices
- Nozick's answer on the complexity of questions that arise: "These issues are very complex and are best left to a full treatment to the principle of rectification. In the absence of such a treatment applied to a particular society one cannot use the analysis and theory presented here to condemn any particular scheme of welfare payments, unless it is clear that no considerations of rectification of injustice could apply to justify it. Although to introduce socialism as the punishment for our sins would be to go too far, past injustices might be so great as to make necessary in the short run a more extensive state in order to rectify them."
- Two insights from Nozick's answer
 - First, Nozick's libertarianism might not be as inegalitarian as we think. If welfare payments are justified on the basis of historical injustice (exploitation of classes, race, gender) and not on the basis of material inequality per se, then it seems that the welfare state is compatible with Nozick because our historical procedures are definitely problematic and unjust
 - Second, Nozick once again (along with taxation to finance the minimal state) shows us that state interference for libertarian values is permissible. This can be instrumental in constructing a justification that invokes the idea that equality underwrites liberty